

(*ε*) **Case of ultra income, but without risk.**—Where the nonconversion is attended with any risk to the property, as in the case of bonds, &c., the *remainderman*, whose interest is thus imperilled, has a right to share in the extra profit of the annual produce (*b*); but suppose *land* to have yielded a rental beyond what would have been the annual produce of the purchase-money, and there has been no depreciation, can the remainderman call back the extra rent received by the tenant for life, or as the remainderman gets all that was ever intended for him, viz. the undepreciated property, may the tenant for life keep the full rent? If not, then, conversely, if the land yield no annual fruit, or less than what the purchase-money would yield, the tenant for life [*\*304*] *\*should have a claim against the remainderman (a).*

But if the tenant for life be also a *trustee* for sale, and neglect to sell, he cannot be allowed to put into his own pocket the higher annual produce which has arisen from his own laches, for no trustee can derive a profit from the exercise of his own office (*b*).

(*ς*) **Gibson v. Bott.**—In *Gibson v. Bott (c)*, leaseholds from a defect of title *could not be sold*, and the Court gave the tenant for life interest at 4 per cent. from the death of the testator on the value. It does not appear from the report at *what time* the value was to be taken, but according to recent cases it should have been ascertained at the expiration of one year from the testator's death (*d*).

(*ζ*) **Capital coming in by instalments.**—If the testator's estate comprise funds not immediately convertible, but *receivable by instalments*, such as the testator's share in a part-

debts, and legacies, and to give the tenant for life the income of the residue from the testator's death, any part not in a proper state of investment to be taken as invested in Consols at the death of the testator.

(*b*) *Dimes v. Scott*, 4 Russ. 195. But see *Stroud v. Gwyer*, 28 Beav. 130, which M. R. distinguished from *Dimes v. Scott*, on the ground that in the latter the irregular investment existed at the death of the testator, but in *Stroud v. Gwyer*, the irregular

investment had been made by the trustees. This appears to be a somewhat thin distinction, [and has been doubted in a recent case, *Re Hill*, 50 L. J. N. S. Ch. 551.]

(*a*) See *Yates v. Yates*, 28 Beav. 637.

(*b*) See *Wightwick v. Lord*, 6 H. L. Cas. 217.

(*c*) 7 Ves. 89.

(*d*) See *Caldecott v. Caldecott*, 1 Y. & C. C. C. 312, 737; *Sutherland v. Cooke*, 1 Coll. 503.